

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 06/15/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
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ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: MSC21-00476
CASE NAME: FLEXSQUARE LLC VS EGHTESAD
JURY TRIAL
FILED BY:
TENTATIVE RULING:

Vacated.

Law & Motion

2. 9:00 AM CASE NUMBER: C22-02585
CASE NAME: ERIC RHEINHEIMER VS. SHANNA FARRELL
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: PAYMON HIFAI, ESQ.**
FILED BY: FARRELL, SHANNA
TENTATIVE RULING:

Clifford R. Horner, Paymon Hifai and Horner Law Group, P.C. (“Counsel”) filed a Motion to be Relieved as Counsel on April 13, 2026 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on August 31, 2026. That motion was advanced for hearing to June 15, 2026 by the Court’s Order issued May 26, 2026.

Background

Counsel seeks to be relieved as attorneys for defendant and cross-complainant Shanna M. Farrell (“Defendant”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship. See Declaration filed April 13, 2026, ¶12. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13 and Notice filed May 29, 2026.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

3. 9:00 AM CASE NUMBER: C23-01360
CASE NAME: LESLEE MARKHAM VS. MICHELLE TIERNAN
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: TIERNAN, MICHELLE
TENTATIVE RULING:

Before the Court is a motion to quash service of the summons and complaint and to set aside default and default judgment filed by defendant Michelle Tiernan. For the reasons set forth, the motion is **DENIED**.

Background

Plaintiffs Leslee Markham and Darrell Markham filed their complaint against defendant Michelle Tiernan on June 5, 2023. The complaint alleges Plaintiffs entered into a contract for the purchase and sale of real estate with Ms. Tiernan which Ms. Tiernan failed and refused to perform. Plaintiffs also allege Ms. Tiernan made misrepresentations regarding her financial ability to perform the contract and her intent to perform under the purchase agreement.

Plaintiffs contend they personally served Ms. Tiernan with the summons and complaint at 7:04 p.m. on Sunday, September 24, 2023 at 1117 Alder Creek Way in Brentwood, as reflected in the proof of service filed with the Court on October 10, 2023. (*See also* Pastor Decl. ISO Mtn. to Quash Exh. 1.) The proof of service identifies Michelle Tiernan as the party served, and the box checked in the proof of service shows it was served by "personal service." (POS Box 3.a and Box 5.a.) The proof of service is executed by Parrish Scott who identifies himself as a registered process server. (POS p. 2.)

Ms. Tiernan did not respond to the complaint. A request for entry of default was served on her by mail at the Alder Creek address. (*See also* Pastor Decl. ISO Mtn. Exh. 2.) Her default was entered by the Court on October 25, 2023. Thereafter, Plaintiffs requested and obtained a default judgment against Ms. Tiernan on June 24, 2024. (*See also* Pastor Decl. ISO Mtn. Exh. 4.) A notice of entry of the judgment was filed on September 24, 2024 showing the notice was served by mail on Ms. Tiernan at the Alder Creek address on September 20, 2024. (Not. Entry of Judg. filed 9/24/2024.)

On December 20, 2024, Ms. Tiernan, through her then-counsel Nathan Pastor, filed a notice of motion and motion to set aside the default and default judgment under Code of Civil Procedure section 473(b) ("Section 473(b) Motion"), without any supporting documents such as a memorandum of points and authorities or declarations. On February 21, 2025, Ms. Tiernan filed a memorandum of points and authorities and a declaration by Ms. Tiernan. The Section 473(b) Motion was made on the ground the default and default judgment were entered based on defendant's mistake, inadvertence, surprise, or excusable neglect in failing to timely respond to the complaint. The Court heard the Section 473(b) Motion on March 24, 2025 and took the matter under submission after oral argument. The Court subsequently issued an order after hearing on April 21, 2025, denying the motion without prejudice to her filing a motion for relief under Code of Civil Procedure sections 473(d) and/or 473.5.

On June 25, 2025, Ms. Tiernan filed her current motion styled as a motion to quash service of summons and to set aside the default and default judgment. The notice of motion and motion state Ms. Tiernan seeks relief under Code of Civil Procedure sections 418.10(a) and 473.5, as well as under Code of Civil Procedure section 473(b).

The parties stipulated to continue the hearing from its original date in November 2025 to the current date. (Stip. filed 11/10/2025; Stip. filed 1/8/2026.) The parties' latest stipulation asked the Court to continue the hearing to at least 45 days after the hearing on a motion for protective order filed by Ms. Tiernan, in which she asked the Court to prohibit plaintiffs' intended deposition of a third party witness Melissa Case. (Stip. filed 1/8/2026.)

The motion for protective order was set for hearing on April 27, 2026. Five days before that, a substitution of counsel was filed, substituting counsel Pastor out of the case and making Ms. Tiernan in pro per. (Subs. of Counsel filed 4/22/2026.) The Court denied Ms. Tiernan's motion for protective order. (OAH filed 4/28/2026.)

Legal Standards Governing the Motion

Code of Civil Procedure section 418.10(a) states in relevant part, "A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: [¶] (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her." Code of Civil Procedure section 473.5 in effect until January 1, 2027 applies "[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action." (Code Civ. Proc. § 473.5(a).) The motion for relief under that statute "shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect." (Code Civ. Proc. § 473.5(b).) The Court may set aside the default and default judgment "[u]pon a finding by the court that the motion was made within the period permitted by subdivision (a) and that the party's lack of actual notice in time to defend the action was not caused by the party's avoidance of service or inexcusable neglect." (Code Civ. Proc. § 473.5(c).)

The motion also seeks relief under Code of Civil Procedure section 473(b) based on inadvertence, mistake, or excusable neglect resulting in the entry of the default and default judgment. The notice of motion and motion and the table of authorities do not cite Code of Civil Procedure section 473(d). The last brief substantive section of the memorandum of points and authorities, however, argues that the default judgment is void and can be set aside under Code of Civil Procedure section 473(d) for lack of personal jurisdiction, because service of the summons was invalid. (Code Civ. Proc. § 473(d) ["The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."].) "[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation omitted.] Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void. [Citation omitted.]" (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444.)

Analysis

A. Relief Under Code of Civil Procedure Section 473(b)

To the extent the motion seeks relief under Code of Civil Procedure section 473(b) based on defendant's excusable neglect or other grounds under that statute, the motion is denied for several reasons. First, defendant previously moved for relief from the default and default judgment under Code of Civil Procedure section 473(b), that motion was heard on March 24, 2025, and the Court denied Ms. Tiernan's Section 473(b) motion in its order after hearing issued April 21, 2025. To the extent this motion renews the Section 473(b) Motion, it is an improper motion for reconsideration not made in compliance with Code of Civil Procedure section 1008, including with the required showing of new evidence previously unavailable, new law, or any other basis for the Court to reconsider the prior ruling. (4/21/2025 Order.)

Second, under the authority cited in the Court's April 21, 2025 Order, the motion for relief under Code of Civil Procedure section 473(b) is untimely under the statute. Code of Civil Procedure section

473(b), effective until January 1, 2027, provides in pertinent part, "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Emphasis added.) The Court lacks jurisdiction to grant relief. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273 [holding relief under Code of Civil Procedure section 473(b) could not be granted where motion for relief from default and default judgment was filed more than six months after entry of defendant's default].) (*See also Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340-342 [six-month deadline of Code of Civil Procedure section 473(b) is jurisdictional; the Court has no jurisdiction to set aside a default if the motion for discretionary relief under Code of Civil Procedure section 473(b) is filed and served after the six-month deadline].)

B. Relief under Code of Civil Procedure Section 473.5 and Motion to Quash

Ms. Tiernan contests service and the Court's jurisdiction over her as a result. In seeking relief under Code of Civil Procedure section 473.5 she also contends she did not have actual notice of the lawsuit in time to defend the action. "When a defendant argues that service of summons did not bring him or her within the trial court's jurisdiction, the plaintiff has 'the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.' [Citation omitted.]" (*American Express Centurion Bank v. Zara* (2011) 199 Cal. App. 4th 383, 387.) For the reasons explained below, Plaintiffs have met their burden of proof to show there was personal service of the summons and complaint on Ms. Tiernan, and Ms. Tiernan's declaration is insufficient to show she did not receive actual notice of the lawsuit based on personal service of the summons and complaint, and that any lack of actual notice is not the result of inexcusable neglect or avoidance of service.

Evidence Code section 647 provides, "The return of a process server registered pursuant to Chapter 16 of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return." The filed Proof of Service of Summons signed by Parrish Scott, a registered process server, meets the presumption which shifts the burden of producing evidence to Ms. Tiernan.

1. The POS and InfoTrack Email

Ms. Tiernan's reply filed by counsel prior to his substitution out of the case characterizes "a September 24, 2023 email from InfoTrack to Plaintiffs' Counsel on September 24, 2023 with the subject line 'Successful process serving for Michelle Tiernan, an individual' " as the " 'Process Server Affidavit,'" referring to Exhibit I to the Beuselink Declaration filed in opposition to Ms. Tiernan's first unsuccessful motion to set aside the default and default judgment under Code of Civil Procedure section 473(b). (Reply ¶¶ 4, 5 filed 1/5/2026, referring to Pastor Decl. Exh. 6 [Beuselink Decl. Exh. I].) This identification misstates the document, Exhibit I (the "InfoTrack Email"), which the Reply acknowledges was merely an unsigned form email from "InfoTrack" reporting completion of service. It is not an affidavit.

Ms. Tiernan argues that the reference in the InfoTrack email to "substitute" service rather than personal service undermines the process server's actual Proof of Service under penalty of perjury attesting to Ms. Tiernan's personal service. (Pastor Decl. Exh. 6 [Beuselink Decl. Exh. I].) The Court

disagrees. The Proof of Service is signed by the process server under oath and describes the timing, manner and location of service specifically. The InfoTrack Email includes other information consistent with the process server's personal service of Ms. Tiernan in the "description" section, particularly when considered with other evidence.

The "description" of service in the InfoTrack email includes the following statement: "Sister gave description about height, and that she had long curly hair person. Answer the door fit that description female said I had the wrong address and walked away from the window would not provide any more information, announce service and dropped at the door." (Pastor Decl. Exh. 6 [Beuselink Decl. Exh. I].) This was not the only information the process server who actually served Ms. Tiernan (Parrish Scott) had regarding Ms. Tiernan's physical appearance. The evidence shows when he tried to serve Ms. Tiernan at a former address on Marsh Court on September 15, 2023, the occupant told him Ms. Tiernan lived there two years ago and provided a physical description of Ms. Tiernan as a 55 year old Caucasian female weighing approximately 150 pounds. (Pastor Decl. Exh. 6 [Beuselink Decl. Exh. G, Non-Service Report].) When he tried to serve her at her sister's home on Weeping Willow Court, the sister provided the physical description including long curly hair, though the sister indicated she had not seen Ms. Tiernan in 10 years, but the sister also indicated the best way to find Ms. Tiernan was at her ex-husband's house based on the joint custody arrangement and Ms. Tiernan having the kids every other weekend. (Pastor Decl. Exh. 6 [Beuselink Decl. Exh. H, Non-Service Report].) Notably, Ms. Tiernan in her declaration does not deny that she matches the physical description available to the process server at the time of service; i.e., a Caucasian woman with long curly hair, approximately 55 years old, 150 pounds. (Compare to American Express Centurion Bank, supra, 199 Cal.App.4th at 387-388 [defendant affidavit explaining in detail why he did not fit the process server's description of the person served].)

The process server's declaration of service signed under penalty of perjury shows "personal" service. (Proof of Service of Summons filed 10/10/2023.) That Exhibit I refers to "substitute service" does not mean that substitute service is the manner in which service was actually effectuated. Rather, the general characterization as "substitute service" conflicts with the more specific and detailed text describing how service was effectuated, a description consistent with personal service and was in a form unsigned email. The Court accepts the more specific description of the service in Exhibit I and the sworn statement of the process server that he personally served Ms. Tiernan.

Ms. Tiernan argues in her reply that the Proof of Service of Summons filed on October 10, 2023 does not comply with Code of Civil Procedure section 417.10. That statute, operative until January 1, 2027, requires only that for service by personal service under Code of Civil Procedure section 415.10, the proof of service consist of an "affidavit of the person making the service showing the time, place, and manner of service and facts showing that the service was made in accordance with this chapter. The affidavit shall recite or in other manner show the name of the person to whom a copy of the summons and of the complaint were delivered" (Code Civ. Proc. § 417.10(a) [emphasis added]; Code Civ. Proc. § 415.10 ["A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served."].) The Proof of Service of Summons shows Michelle Tiernan was served by personal service at 7:04 p.m. on Sunday, September 24, 2023 at the Alder Creek address. The email, Exhibit I, shows the summons and complaint were delivered to Michelle

Tiernan as the person matching the physical description given by her sister, including long curly hair. Ms. Tiernan has not shown how the Proof of Service of Summons filed October 10, 2023 does not comply with Code of Civil Procedure sections 415.10 and 417.10(a), as that statute was in effect in September 2023 when service was effectuated. The Tiernan Reply incorrectly cites provisions of a new version of Code of Civil Procedure section 417.10 that does not become effective until January 1, 2027. (Reply ¶ 13, pp. 5-6.)

2. Ms. Tiernan's Evidence Contesting Service and Notice and Contrary Evidence

Ms. Tiernan has produced evidence attempting to contest the facts stated in the Proof of Service of Summons. The motion is supported by a declaration by Michelle Tiernan filed June 25, 2025. She declares that she has been "homeless" since some time in 2020. (Tiernan Decl. ¶ 2.) She declares she last "lived" at the Alder Creek address in 2017, but that her ex-husband and children live at that address. (Tiernan Decl. ¶ 3.) She does not explicitly deny that she was served at the Alder Creek address or that she received the summons and complaint. Instead, she states: "I do not recall being personally served at 1117 Alder Creek at any time since the commencement of this action and I do not understand how I could be served at this address, as I do not live there." (Tiernan Decl. ¶ 4.)

The fact she does not live at the Alder Creek address does not mean that she could not be served there by personal service. Personal service under Code of Civil Procedure section 415.10 requires only "personal delivery" of the summons and complaint to the defendant, not delivery at any particular location. (Code Civ. Proc. § 415.10.) She does not claim that she has not visited the Alder Creek address since she stopped living there, or that she did not visit that address in September 2023, or that she was not at that address at around 7 p.m. on Sunday, September 24, 2023.

Ms. Tiernan also states, "In or about October 2024, I was informed by Counsel that a default had been obtained in an action against me. This was also when I first understood that I had been sued in this matter." (Tiernan Decl. ¶ 1.) The second sentence is the closest Ms. Tiernan's declaration comes to stating that she did not have actual notice of the lawsuit in time to defend it. Neither Ms. Tiernan's declaration nor Pastor's declaration explain how or why Ms. Tiernan's attorney learned a default was entered against Ms. Tiernan in October 2024 when the attorney informed her of the default, since her counsel Pastor was not served with the notice of entry of the default judgment; instead, it was served on Ms. Tiernan at the Alder Creek address. (See Notice of Entry of Judgment p. 2 filed 9/24/2024.) Pastor denied he would be representing Ms. Tiernan in the dispute with the Markhams in his November 2022 email communications with Plaintiffs' counsel Beuselink before suit commenced. (Pastor Decl. ISO Mtn. to Quash Exh. 6 [Beuselink Decl. Exh. A].)

Tunis v. Barrow (1986) 184 Cal.App.3d 1069 cited by Ms. Tiernan is distinguishable. Plaintiffs are not relying on any notice or knowledge of the lawsuit by Ms. Tiernan's counsel to demonstrate she had actual notice of the lawsuit; the defendant in that case was served by publication, not by personal service. The evidence in that case was essentially uncontested that the defendant had counsel who was engaged in discussions with the plaintiff's counsel regarding the merits of the dispute. Though defendant's counsel knew about the lawsuit, he never informed the defendant about the case and instead actively concealed it from defendant. (*Id.* at 1074, 1077-1079.) The Court held defendant had proven grounds for relief under Code of Civil Procedure section 473.5. The defendant demonstrated that he had no actual notice of the lawsuit and that his ignorance was not the result of avoidance of

service or inexcusable neglect, because the Court held the defendant's attorney's knowledge of the suit should not be imputed to the defendant under those circumstances. (*Id.* at 1078-1079.)

Other evidence supports that Ms. Tiernan was the person personally served with the summons and complaint on October 10, 2023 at 7:04 p.m. on a Sunday night. The Motion includes a copy of an agreement for joint physical custody of the children by Ms. Tiernan and her ex-husband. (Pastor Decl. Exh. 4 [Marital Stlmt. Agmt. Section 2] and Exh. 5 [Request for Change of Custody, ¶ 2.b., asking for change in visitation arrangements to "Father's return home from work on Friday until Sunday evening at 7 00 pm on alternate weekends + mid-week dinner visits for Father and the children or. his weekdays when he is not working,"], and ¶ 2.d.(2), describing the then-current arrangements as "Joint physical custody week-on/week-off schedule"], and attachment to request stating she is seeking a "modification of the parenting plan that includes Father being with the children on alternate weekends from Friday after school until Sunday at 7:00 pm plus mid-week visits and on the days he is off of work.".) The revised visitation Ms. Tiernan requested is consistent with service of her at the Alder Creek address at 7:04 p.m. on a Sunday night.

Beuselink sent a pre-litigation demand letter to Ms. Tiernan at the email address she was using to communicate with the real estate agent Melissa Case who was acting as dual agent in the transaction in the sale that is the subject of this action. (L. Markham Opp. Decl. ¶¶ 2-5 filed 12/29/2025; Pastor Decl. Exh. 6 [Beuselink Decl. ¶ 3 and Exhs. B and C.] Ms. Tiernan again does not deny that she received the email notice from Beuselink with the demand and notifying her of the Markhams' intent to sue her if she did not agree to participate in mediation. Rather, Ms. Tiernan states without any time frame only, "I have also lost access to prior email addresses that I had, as well as prior phone numbers." (Tiernan Decl. ¶ 6.) She does not state when she purportedly "lost access" to her prior email addresses, and it seems beyond credibility that she did not have access to her email on November 21, 2022, when she had used that email address to communicate with Melissa Case, dual agent for the sellers and buyer, only a short time before on November 9, 2022 when she told Case she was getting money from her brother to make the initial deposit required for the sale. (Pastor Decl. Exh. 6 [Beuselink Decl. Exh. C].)

Copies of the request for entry of her default and a notice of entry of the judgment were mailed to Ms. Tiernan at the Alder Creek address. (10/25/2023 Req. for Def. p. 2; 9/24/2024 Not. of Entry of Judgment p. 2.) A copy of the motion for an assignment order was also served on Ms. Tiernan at the Alder Creek address. (*See* Mtn. to Quash p. 4, ¶ 27.) Ms. Tiernan does not address those mailings in her declaration, none of which look like a letter, scam or otherwise. She does not deny that she received copies of either the request for entry of default or the notice of entry of the judgment; she declares only that her son told her about a letter telling her she was being sued which she assumed was a scam and had him throw away, and that she "first understood" she was being sued in this case in October 2024 when her counsel Pastor told her. (Tiernan Decl. ¶¶ 1, 7.)

Ms. Tiernan implicitly admits in her declaration that mail directed to her was received at that address, and indeed that her son opened mail for her that asserted she was being sued. She claims she was receiving "scam" mail because of her bad credit. (Tiernan Decl. ¶ 7.) Bad credit typically is associated with late-paid or unpaid debts such that it is not clear why she would conclude a letter stating she

was being sued was a "scam" rather than being a genuine debt collection letter.

C. Other Issues Raised by the Parties

In an additional opposition filed by Plaintiffs on June 2, 2026 prior to the current hearing, Plaintiffs also argue that Ms. Tiernan has now made a general appearance in the action by making a motion for protective order to try to prevent Plaintiffs from taking the deposition of Michelle Case. Ms. Tiernan filed her motion for protective order on December 9, 2025. The fact she filed the protective order motion, even if it constitutes a general appearance, is not relevant to the determination of the motion as she did not make a general appearance in the action before her default and default judgment were entered.

In their opposition filed December 29, 2025, Plaintiffs also argue the motion for relief under Code of Civil Procedure section 473.5 is untimely. In *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, the California Supreme Court held that the two-year time limitation under Code of Civil Procedure section 473.5 does not apply to a motion for relief from a default judgment that is void for lack of notice. (*Id.* at 226.) Though the motion is admittedly less clear, the Court interprets Ms. Tiernan as arguing she was not in fact served with the summons and complaint despite the Proof of Service of Summons stating to the contrary, such that if the summons and complaint were not actually served on her, the Court would not have acquired personal jurisdiction over her and the default and default judgment would be void, in contrast to, for example, a valid judgment based on service by publication or service by subservice which a party contests based on lack of actual notice of the lawsuit. (*Id.* at 223.) Under a theory the default and default judgment are void for lack of service, the motion is timely. The Court has found, however, after weighing all the evidence including the Tiernan Declaration, the Proof of Service of Summons by the process server, and other evidence and circumstances before the Court, that Ms. Tiernan has not proven she was not served by personal service with the summons and complaint on September 24, 2023.

Conclusion and Ruling

The motion for relief under Code of Civil Procedure section 473(b) is **DENIED** as legally and procedurally improper for the reasons stated above.

Weighing the evidence before the Court, the Court finds Plaintiffs have demonstrated Ms. Tiernan was personally served with the summons and complaint as stated under oath by the process server who performed the service and based on other evidence consistent with such service. The process server's proof of service under penalty of perjury is corroborated by other evidence suggesting a likelihood Ms. Tiernan was present at the Alder Creek address at about 7 p.m. pursuant to her child custody arrangements with her ex-husband, and the physical description of Ms. Tiernan available to the process server from prior service attempts a portion of which is included in the InfoTrack email and which description Ms. Tiernan does not contest was accurate.

Ms. Tiernan has not shown the facts stated in the (real) affidavit of service were untrue, that she did not have actual notice of the lawsuit in time to defend the action, and that any lack of actual notice was not the result of her inexcusable neglect or avoidance of service to obtain relief under Code of Civil Procedure section 473.5. She has not shown that the summons should be quashed for lack of

proper service by personal service, or that the affidavit of service fails to comply with Code of Civil Procedure sections 415.10 and 417.10, and that the default and default judgment are void for lack of personal jurisdiction over her. The motion to quash the summons and to set aside the default and default judgment under Code of Civil Procedure sections 418.10 and 473.5 is **DENIED**.

4. 9:00 AM CASE NUMBER: C23-02467
CASE NAME: CHRISTINA CRAVAT VS. BIO-RAD LABORATORIES, INC.
***HEARING ON MOTION IN RE: LEAVE TO FILE A SECOND AMENDED COMPLAINT**
FILED BY:
TENTATIVE RULING:

The motion is **continued** to June 29, 2026 at 9:00 a.m. in Department 34 by stipulation of the parties.

5. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
***HEARING ON MOTION IN RE:**
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Geico Indemnity Company (erroneously sued as Geico Insurance)'s Motion to Set Aside Entry of Default ("Motion").

Defendant's Request for Judicial Notice is **GRANTED**. (Evid. Code § 452(d).)

Procedural History

Plaintiff filed her original complaint on March 11, 2024, naming Geico as Defendant. Geico appeared in the matter and demurred to the complaint. Plaintiff filed a First Amended Complaint on July 2, 2024. There were additional challenges to the pleadings resulting in, relevant here, Plaintiff's Fourth Amended Complaint (4AC) being filed on October 21, 2025. Thereafter, on November 21, 2025, Plaintiff sought and a default was entered against Geico.

Geico filed this Motion on December 8, 2025. Plaintiff opposes the Motion.

Analysis

Defendant makes several arguments as to why the default should not have been entered against it.

Timing

First, Defendant notes that the Proof of Service attached to the 4AC indicates that it was served on October 20, 2025, the day *before* it was signed and dated by Plaintiff and filed with the Court. Defendant contends Plaintiff could not have served the 4AC on them before it was signed and/or filed with the Court – indicating that the Proof of Service is unreliable.

Even if the Court takes the Proof of Service as being accurate, the default should not have been entered as the time for Geico to respond had not run when it was granted. A defendant shall answer an amended complaint “within 30 days after service thereof....” (Code Civ. Proc. § 471.5.) California Code of Civil Procedure section 1010.6, which relates to electronic service of documents, states, in pertinent part that “[a]ny period of notice, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two **court** days....” (Code Civ. Proc. § 1010.6 (a)(3)(B) emphasis added.) As such, Defendant had 30 days + two **court** days to respond to the 4AC.

The 4AC was purportedly electronically served on October 20, 2025. Thirty days after October 20, 2025, is Wednesday, November 19, 2025. Adding two additional court days means that Defendant’s response to the 4AC was due on or before Friday, November 21, 2025.

The Court’s records indicate that Defendant submitted its demurrer and motion to strike at 3:01 p.m. on Friday, November 21, 2025. Defendant had until 11:59 p.m. on that date to file its papers. (Cal. R. Ct. 3.1300 (e).) As such, Defendant did timely respond to the 4AC.

Due to an apparent error in the clerk’s office, the court accepted the Plaintiff’s request for default on November 21 before Defendant’s submission at 3:01 p.m. This is despite the fact that Plaintiff was not eligible to obtain a default until November 22 at the earliest. As the demurrer and motion to strike were received after the default, the clerk’s office mistakenly rejected Defendant’s responsive papers.

Based on the above, Defendant should not have been defaulted as it still had time to – and did in fact attempt to – file its responsive papers to the 4AC.

As such, the Default should be set aside. There are additional reasons worth discussing.

Obligation to warn of impending default

“[I]t is now well acknowledged that an attorney has an *ethical* obligation to warn opposing counsel that the attorney is about to take an adversary’s default.” (*Lasalle*, supra, 36 Cal.App.5th at 135.) In making this finding, the *Lasalle* Court “heartily endorse[d]” the related admonition found in the Rutter Group practice guide, which states:

“[Practice Pointer:] If you’re representing plaintiff and have had *any* contact with a lawyer representing defendant, don’t even attempt to get a default entered without first giving such lawyer *written* notice of your intent to request entry of default, and a reasonable time within which defendant’s pleadings must be filed to prevent your doing so.” (*Ibid.* quoting Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2008) ¶5:71, p. 5-17.) [Note – The 2025 version of the Rutter Guide still contains this Practice Pointer]

Although there were a minority of cases that held that an ethical breach did not mean there was a legal violation, the *Lasalle* court distinguished those cases, finding they did not consider the enactment of Code of Civil Procedure section 583.130 in January 1984. (*Lasalle*, 36 Cal.App.5th at 136-137.) California Code of Civil Procedure section 583.130 states, in relevant part, that it “is the policy of this state that a plaintiff shall proceed with reasonable diligence in prosecution of any action

but that ***all parties shall cooperate*** in bringing the action to trial or other disposition.” (Code Civ. Proc. § 583.130, emphasis added.) “That is not complicated language... The policy of the state is that the parties to a lawsuit ‘shall cooperate.’ Period. Full Stop.” (*Lasalle*, 36 Cal.App.5th at 130.)

Given the above, the “ethical obligation to warn opposing counsel of an intent to take a default is now reinforced by a statutory policy that all parties ‘cooperate in bringing the action to trial or other disposition.’” (*Id.* at 137.) “Quiet speed and unreasonable deadlines do not qualify as ‘cooperation’ and cannot be accepted by the courts.” (*Ibid.*)

The “obligation to advise opposing counsel of an impending default is part of an attorney’s responsibility to the court and the legal profession and takes precedence over the obligation to represent the client effectively.” (*Shapell Social Rental Properties, LLC v. Chico’s FAS, Inc.* (2022) 85 Cal.App.5th 198, 213 citing *Lasalle*, 36 Cal.App.5th at 134, 137.) “The State Bar Civility Guidelines deplore the conduct of an attorney who races opposing counsel to the courthouse to enter a default before a responsive pleading can be filed.” (*Id.* at 135.)

While Plaintiff here is acting in pro per, that does not excuse her actions in failing to notify opposing counsel that she intended to seek a default. “Pro. per. litigants are held to the same standards as attorneys.” (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Thus, courts “see no reason why the rules of professional conduct, at least as those rules govern conduct in the actual course of litigation, should not apply to pro per litigants in the very cases where pro per litigants elect to act as their own attorneys.” (*Ibid.*) “To say otherwise would be to give pro per litigants ... an unfair advantage over parties represented by attorneys bound by the code.” (*Ibid.*)

Plaintiff made no attempt to warn Defendant. It is clear that Defendant is actively litigating this matter – as they have been disputing the pleadings for over two years. Plaintiff’s attempt to obtain a default without alerting them will not be countenanced.

Conclusion

Based on the above, Defendants’ Motion is **GRANTED**. The default entered on November 21, 2025, is set aside. Defendant shall file their responsive pleadings within ten (10) days of notice of entry of the Order on this Motion.

6. 9:00 AM CASE NUMBER: C24-02427
CASE NAME: REPUBLIC FLOOR, LLC VS. KARIN FAAPOULI
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: JP MORGAN CHASE BANK
TENTATIVE RULING:

Introduction

Before the Court is Defendant JPMorgan chase bank, N.A.’s (“JPMC”) Demurrer to Plaintiff Republic Floor LLC’s Second Amended Complaint (“SAC”). The Motion addresses the sixth cause of action for Violation of Commercial Code section 11207 and seventh cause of action for Negligence.

For the reasons explained below, Defendant JPMorgan Chase Bank, N.A.'s Demurrer is **OVERRULED** in its entirety.

Request for Judicial Notice

Defendant JPMC requests judicial notice of four items which consists of three articles and a rule book.

Exhibit A is an article titled "What is an ACH Transaction" published by the Consumer Financial Protection Bureau on its website. Defendant contends that pursuant to Evidence Code § 452(c), the Court may take judicial notice of "acts of legislative, executive, and judicial departments . . . of any state of the United States" including materials published on government websites. (*Martinez v. Cot'n Wash, Inc.* (2022) 81 Cal. App. 5th 1026, 1050 n.7 ["[C]ourts may take judicial notice of information published on official government websites."])

Exhibits B and C are articles titled "How ACH Payments Work" and "ACH Payments Fact Sheet" both published by the National Automated Clearing House ("NACHA"), the entity that governs the ACH payment system network. Both articles are posted on NACHA's website. Defendant contends that pursuant to Evidence Code § 452(h), the Court may take judicial notice of "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to courses of reasonable accuracy." Defendant brings up that courts routinely take judicial notice of publicly available website content published by credible and reputable sources. (See, e.g., *Cairns v. Franklin Mint Co.* (2000) 107 F. Supp.2d 1212, 1216, affirmed 292 F.3d 1139 (9th Cir. 2000) [applying substantially similar federal standard to take judicial notice of webpages on museum website].)

Exhibit D is an excerpt of articles 2 and 3 of the 2026 NACHA Rules. Defendant contends that the Court may take judicial notice of the NACHA Rules, which are incorporated in relevant part into federal law (see 31 C.F.R. § 210.3) pursuant to Evidence Code § 452(c), permitting judicial notice of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States."

These matters relate to issues that are beyond the scope of the pleadings and were irrelevant to the Court's ruling. The Court DENIES judicial notice of all four of Defendant's exhibits. Only relevant material is a proper subject of judicial notice, even where the Evidence Code provides in mandatory terms that matters be judicially noticed." (*Hayward Area Planning Assn. v. City of Hayward* (2005) 128 Cal.App.4th 176, 182 citing *Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063.)

Factual Background

Plaintiff seeks to assert two claims against JPMorgan Chase Bank, N.A. ("JPMC"), seeking recovery of over \$7 million in funds allegedly stolen by its former employee, defendant Karin Tufono ("Tufono"), through a series of allegedly unauthorized ACH transfers (beginning in June 2022 and ending in mid-August 2024) from Plaintiff's account with Israel Discount Bank of New York ("IDB") to Tufono's account at JPMC and additional JPMC accounts associated with defendant Samoan Congregational Church of Jesus Christ in Daly City ("Samoan Church"). (SAC at ¶¶ 1, 28.)

JPMC was the beneficiary bank of the fraudulent ACH transfers initiated by Karin Tufono. (SAC, ¶¶ 32–37.) JPMC accepted and credited these ACH transfers into the JPMC accounts held by her and/or the Church. (Id., at ¶ 37.) Most of the ACH transfers were deposited into a Chase Secure Checking account in Karin Tufono's personal checking account that, under JPMC's Digital Services Agreement

("DSA"), could not be used for business purposes. (SAC, ¶¶ 32–34, 73.) Nearly all the transfers were coded as commercial transactions and identified beneficiaries that could not reasonably have been mistaken for the account holder. (Id., ¶¶ 72–73.)

Hundreds of transfers identified "U.S. Customs" as the beneficiary, which could not legitimately own or receive funds through a consumer checking account. (Id., ¶¶ 22, 72–76.) Other transfers identified various company vendors as beneficiaries, which similarly could not have been mistaken for the owners of the accounts where the funds were deposited. (Ibid.) JPMC's systems had information identifying the true owners of the receiving accounts, and JPMC issued monthly statements to those accountholders reflecting the misdescribed, commercially coded payments, bearing the false beneficiary names. (Id., ¶¶ 32–37, 73–76.) Despite this repeated and escalating pattern—and the sheer volume and duration of the transfers—JPMC continued to accept the misdescribed ACH transfers. (Id., ¶¶ 73–78.)

After the embezzled funds were deposited, Defendant Tufono transferred millions of dollars out of her JPMC account through Zelle payments, often immediately after large ACH deposits were credited to her account. (SAC, ¶¶ 38, 81–87.) Those Zelle transfers increased in frequency and size over time and repeatedly exceeded the daily limits set by JPMC for consumer accounts. (Id., ¶¶ 82–89.) Rather than investigate or restrict the activity, JPMC raised Tufono's Zelle transfer limits multiple times and enabled her to keep moving money out of her JPMC account. (Id., ¶¶ 83–85, 88–90.) Despite this sustained pattern of highly suspicious activity, JPMC allowed Karin Tufono to continue maintaining her accounts for illegal purposes, thereby facilitating the embezzlement and dissipation of Plaintiff's stolen funds. (SAC, ¶¶ 38, 91–95.)

Legal Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("Doe")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

Sixth Cause of Action for Violation of Commercial Code § 11207

"The elements of a cause of action for negligence are well established. They are "(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury." ' ' (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Whether a defendant owes a duty of due care to a particular plaintiff is a question of law. (*Peter W. v. San Francisco Unified Sch. Dist.* (1976) 60 Cal.App.3d 814, 822; 4 Witkin, Summary of Cal. Law (8th Ed. 1974) Torts, § 493, p. 2756.)

Actual Knowledge

JPMC's contention that it lacked actual knowledge because ACH transfers are "automatically processed" and it purportedly complied with the National Automated Clearing House ("NACHA") Operating Rules fails at the outset. (Demurrer, at pp. 14-15.) Whether JPMC in fact relied on automatic processing or complied with NACHA rules are fact issues that cannot be resolved on demurrer. (See *People v. B&I News, Inc.* (1984) 164 Cal.App.3d Supp. 1, 7 ["evidentiary matters are not properly presented in support of, or in opposition to, a demurrer."].)

Grand Bayman Belize, Ltd. confirms this point. There, the court evaluated the defendant bank's procedures and knowledge only at summary judgment, based on the evidentiary record and undisputed facts. (*Grand Bayman Belize, Ltd. v. Wells Fargo & Co.* (C.D. Cal. 2021) 514 F.Supp.3d 1188, 1191.) The court's analysis relied on findings of fact about automated screening systems used by that bank for the transfers at issue. It is improper to make such determinations about JPMC's procedures and knowledge here, on a demurrer, where the Court assesses only whether the SAC alleges facts supporting an inference of actual knowledge.

Plaintiff's allegations that Defendant JPMC violated its own policies are not conclusory. The SAC identifies Defendant JPMC's Digital Services Agreement ("DSA") and alleges in detail that JPMC knowingly accepted over 250 misdescribed ACH transfers that had a "complete disconnect" between the named beneficiaries and the account holders' names and were also commercially coded in violation of the DSA and other policies and procedures. (SAC, ¶ 73.) These allegations are sufficient to show actual knowledge.

TME defined a "complete disconnect" to be when the designated name and account name bear no resemblance to each other and have nothing in common with each other. (*TME Enterprises, Inc. v. Norwest Corp.* (2004) 124 Cal.App.4th 1021, 1034.) The SAC is prime example of a complete disconnect between beneficiary names. Here, the names of the recipient account holders were Karen Taapouli and Samoan Congressional Church of Jesus Christ in Daly City, while the alleged mismatched named beneficiaries on the transfers consisted of "US Customs", "A&M Pallets", and "Penske Truck." This is distinguishable to the facts in *TME* where the Second Appellate District Court of Appeals reasoned that the name specified in appellants' wire transfer, "Vieri Gaines Guadagni, trustee fbo McDaniel," was sufficiently similar to "Vieri Gaines Guadagni," the name associated with the account number designated in the wire transfer, to preclude a finding of a "complete disconnect" between the two names. (*TME Enterprises, Inc. v. Norwest Corp.* (2004) 124 Cal.App.4th 1021, 1034.) Rather, Plaintiff alleges that JPMC knew of a stark and categorical mismatch between the named beneficiaries and the receiving account holders across over 250 transfers (most of which were identically named) and continued to accept misdescribed ACH transfers. (SAC, ¶¶ 73-78.)

Plaintiff has stated sufficient facts to establish Defendant JPMC's actual knowledge of the alleged misdescription of the beneficiary for the ACH transfers.

Privity Requirement

Defendant quotes a decision by the California Eastern District Court case, *Ozer Holdings, LLC v. Citibank, N.A.* (E.D.Cal. 2025) 807 F. Supp. 3d 1133, that relies on Seventh and Second circuit cases that found that a privity requirement applied to claims brought under section 207. (*Approved Mortgage Corp. v. Truist Bank* (7th Cir. 2024) 106 F.4th 582, 590-92.) *Approved Mortgage* noted that

Section 207 does not state what happens when funds are received by the beneficiary's bank despite the prohibition on acceptance. The statutory language states that acceptance 'cannot occur,' but does not explain the effect of the non-occurrence. Section 402 provides this by providing a remedy by which senders are made whole when the beneficiary's bank's acceptance of a payment order could not have occurred. (*Approved Mortg. Corp.*, 106 F.4th at 589.) *Approved Mortgage* endorsed the Second Circuit holding which found that section 402 "imposes a privity requirement such that a sender seeking a refund for an uncompleted funds transfer may look only to the receiving bank to whom it issued a payment order and payment." (*Grain Traders, Inc. v. Citibank, N.A.* (2d Cir. 1998) 160 F.3d 97, 106.)

Ozer, *Approved Mortgage*, and *Grain Traders* are all decisions that are not binding on this Court. Plaintiff argues that California courts have applied this provision for twenty years since *TME* without needing to discuss privity could be the result of a shared implicit understanding that privity is not a requirement. (Opposition at p. 15: 3-9.) In sum, Defendant JPMC fails to cite a binding California case in support of their argument that Commercial Code section 11207 has a privity requirement. Opposition at p. 15:2-3.)

This Court moves in conjunction with the last 20 years of California jurisprudence without considering privity a requirement for a cause of action for violation of Commercial Code section 11207.

Commercial Code section 11505 Statute of Repose

Commercial Code section 11505 provides, "If a receiving bank has received payment from its customer with respect to a payment order issued in the name of the customer as sender and accepted by the bank, and the customer received notification reasonably identifying the order, the customer is precluded from asserting that the bank is not entitled to retain the payment unless the customer notifies the bank of *the customer's objection to the payment* within one year after the notification was received by the customer."

The official comments for this section reads in part, "This section is in the nature of a statute of repose for objecting to debits made to the customer's account. A receiving bank that executes payment orders of a customer may have received payment from the customer by debiting the customer's account with respect to a payment order that the customer was not required to pay... Under 4A-505, however, the obligation to refund may not be asserted by the customer if the customer has not objected to the debiting of the account within one year after the customer received notification of the debit."

Defendant cites *Zengen* for the proposition that a one-year limitation applies to a sender's claim for refunds from allegedly fraudulent transfers and argues that the SAC alleges that Plaintiff knew of the transactions no later than August 2024, and the SAC alleges that Plaintiff first provided Defendant JPMC with notice of its intent to seek through the FAC filed August 26, 2025, over a year later. (Demurrer at p. 17: 3-17.)

Plaintiff argues that by its plain terms, Section 11505 applies only to "customer[s]" of the bank receiving payment. (Opposition at p. 15: 19-20.) A "customer" is defined as "a person . . . having an account with a bank or from whom a bank has agreed to receive payment orders." (Com. Code, § 11105, subd. (a)(3).) Here, Plaintiff had an account and was therefore a customer of Israel Discount Bank of New York ("IDB"). Plaintiff distinguishes the current facts with *Zengen* because the plaintiff in

Zengen held accounts with Defendant Comerica Bank. (Opposition at p. 16: 4-8.)

The Court agrees with Plaintiff that this statute does not apply because Plaintiff is not a customer as provided in the statute. The Court also notes that the official comments in Commercial Code section 11505 mentioned multiple UCC codes did not once mention the UCC 4A-207 which is the equivalent of Commercial Code section 11207.

Seventh Cause of Action for Negligence

“The elements of a cause of action for negligence are well established. They are “(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” ’ ’ (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Whether a defendant owes a duty of due care to a particular plaintiff is a question of law. (*Peter W. v. San Francisco Unified Sch. Dist.* (1976) 60 Cal.App.3d 814, 822; 4 Witkin, Summary of Cal. Law (8th Ed. 1974) Torts, § 493, p. 2756.)

Division 11 Preemption Argument

Division 11 of the Commercial Code preempts “common law causes of action based on allegedly unauthorized funds transfers” only in “two specific areas: (1) where the common law claims would create rights, duties, or liabilities inconsistent with division 11; and (2) where the circumstances giving rise to the common law claims are specifically covered by the provisions of division 11.” (*Zengen, Inc. v. Comerica Bank* (2007) 41 Cal. 4th 239, 253 [holding Division 11 squarely covers and displaces any common law claim where the gravamen of the claim is that the Bank should not have accepted and executed the fraudulent payment orders.]) But it does not “necessarily displace[] all common law actions based on all activities surrounding funds transfers.” (*Id.*, at p. 254.)

Defendant argues that Plaintiff’s repeated allegations that JPMC “unlawfully accepted” the ACH transfers are undoubtedly central to its negligence claim. (Demurrer at p. 18: 16-17.)

Plaintiff responds by stating that the gravamen of Plaintiff’s negligence claim is not JPMC’s acceptance of misdescribed ACH transfers but JPMC’s acts or omissions that allowed Karin Tufono “to transfer embezzled funds out of the Chase Tufono account,” primarily through Zelle payments. (SAC ¶¶ 80–95.)

Thus, the duty complained of in Plaintiff’s negligence cause of action is separate and distinct from the duty contemplated in Plaintiff’s cause of action for violation of Commercial Code section 11207.

Duty of Care from JPMC to Plaintiff

Defendant argues that since Plaintiff is not a JPMC customer with respect to the ACH transfers or withdrawal payments at issue Defendant does not owe any duty to Plaintiff. Defendant JPMC argues that California law is clear: banks do not owe duties to non-customers. (Demurrer at p. 19: 2-9.)

The Second District Court of Appeal held that a financial institution has a duty “not to ignore ‘red flags’ or ‘suspicious’ ‘circumstances’ that may indicate that a third party involved in that transaction is being defrauded, and, in that instance, [] not to proceed with the transaction without first doing some investigation to dispel those suspicions.” (*QDOS, Inc. v. Signature Financial, LLC* (2017) 17 Cal.App.5th 990, 999–1000.) Red flags include when a bank’s customer tries to have the proceeds of the third party’s check that was made out to someone else placed in the customer’s own personal

account. (*QDOS, Inc. v. Signature Financial, LLC* (2017) 17 Cal.App.5th 990, 1000.)

Hundreds of transfers identified “U.S. Customs” as the beneficiary, which could not legitimately own or receive funds through a consumer checking account. (SAC ¶¶ 22, 72–76.) Other transfers identified various company vendors as beneficiaries, which similarly could not have been mistaken for the owners of the accounts where the funds were deposited. (Id.) JPMC’s own systems had information identifying the true owners of the receiving accounts, and JPMC issued monthly statements to those accountholders reflecting the misdescribed, commercially coded payments, bearing the false beneficiary names. (SAC ¶¶ 32–37, 73–76.)

Defendant Tofuno transferred millions of dollars out of her JPMC account through Zelle payments, often immediately after large ACH deposits were credited to her account. (SAC, ¶¶ 38, 81–87.) Those Zelle transfers increased in frequency and size over time and repeatedly exceeded the daily limits set by JPMC for consumer accounts. (SAC ¶¶ 82–89.) Rather than investigate or restrict the activity, JPMC raised Tofuno’s Zelle transfer limits multiple times and enabled her to keep moving money out of her JPMC account. (SAC ¶¶ 83–85, 88–90.)

Therefore, Plaintiff has established that Defendant owed Plaintiff the duty of investigating the red flag when Defendant Tofuno’s had Plaintiff Floor Republic’s checks that were made out to another business’ name being deposited in her own personal account.

Economic Loss Rule

Defendant takes the position that Plaintiff’s negligence claim is further barred by California’s economic loss rule, which prohibits “recovery in tort for negligently inflicted purely economic losses, meaning financial harm unaccompanied by physical or property damage.” (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal. 5th 905, 922.) Defendant argues that Plaintiff alleges purely economic losses for its negligence claim and no special relationship exists between Defendant JPMC and Plaintiff because no such special relationship exists between a bank and a non-customer like Plaintiff.

Plaintiff posits that Defendant JPMC’s reliance on the economic loss rule is misplaced as the California Supreme Court explained in *Sheen*, the economic loss rule “functions to bar claims in negligence for pure economic losses in deference to a contract between litigating parties,” and generally applies to “parties who are in contractual privity.” (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922–23, emphasis added.) This is not the case here. Plaintiff is not in contractual privity with JPMC and does not seek damages arising from any contract with JPMC.

Plaintiff concedes that *Sheen* recognizes that the rule may, in limited circumstances, apply where there is not contractual privity when necessary to avoid “liability in an indeterminate amount for an indeterminate time to an indeterminate class.” (*Sheen*, at p. 922 [quoting *So. Cal. Gas Leak Cases* (2019) 7 Cal.4th 391, 414].) But that narrow concern is not implicated here, where Plaintiff alleges discrete transactions and a specific, identifiable harm caused by JPMC’s conduct. Nor does *Kurtz-Ahlers, LLC v. Bank of America, N.A.* (2020) 48 Cal.App.5th 952 compel a different result. That case concerned a bank’s duty of care. As explained above in the duty section, the Court did find a special relationship between Defendant JPMC and Plaintiff as Defendant JPMC owed a duty to Plaintiff to investigate red flags.

Therefore, the economic loss rule does not apply, and the Court should overrule the Demurrer as to

Plaintiff's negligence claim.

Indispensable Party

A party is necessary and "shall be joined as a party in the action if (1) in [its] absence complete relief cannot be accorded among those already parties or (2) [it] claims an interest relating to the subject of the action and is so situated that the disposition of the action in [its] absence may (i) as a practical matter impair or impede [its] ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest." (CCP § 389(a).) If a necessary party cannot be joined, the court should "determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable." (*Dreamweaver Andalusians, LLC v. Prudential Ins. Co. of Am.* (2015) 234 Cal. App. 4th 1168, 1173.)

The gravamen is defined by the *acts* on which liability is based, not some philosophical thrust or legal essence of the cause of action. (*MMM Holdings, Inc. v. Reich* (2018) 21 Cal.App.5th 167, 178; citing *Contreras v. Dowling* (2016) 5 Cal.App.5th 394, 404–405.)

Defendant JPMC contends that the gravamen of this action is the series of allegedly wrongful ACH transfers and as the originating bank for all the transfers, Israel Discount Bank of New York ("IDB") is both a necessary and indispensable party because IDB's contractual relationship and dealings with Plaintiff plainly are essential to evaluating the claims and potential defenses. (Demurrer at p. 21: 9-13.)

Plaintiff rebuts by arguing that the presence of IDB is not necessary to achieve complete relief between Plaintiff and Defendant JPMC since JPMC can be held liable to Plaintiff under Commercial Code section 11207 and for negligence based on its own conduct as the beneficiary bank. (Opposition at p. 19: 18-21.)

Defendant JPMC additionally contends that IDB is responsible for all payment orders it originates and owes each receiving institution that each entry has been properly authorized and complies with the NACHA Rules. (Demurrer at pp. 21-22.)

Plaintiff responds to Defendant's additional contention by pointing out if JPMC believes it has a right to indemnity or contribution from IDB, it can file a cross-complaint against IDB, but there is no basis to conclude that IDB is a necessary and indispensable party without whom the claims against JPMC may not proceed. (*Countrywide Home Loans, Inc. v. Superior Court* (1999) 69 Cal.App.4th 785, 797.) At most, if JPMC is correct that IDB bears liability, IDB may possibly be a joint tortfeasor, but it is well settled that "[j]oint tortfeasors are not necessary parties." (Id citing *Singer Co. v. Superior Court* (1986) 179 Cal. App. 3d 875, 892.)

Defendant JPMC has not shown that Israel Discount Bank of New York ("IDB") is both a necessary and indispensable party to this action.

Conclusion

For the reasons above, Defendant JPMorgan Chase Bank, N.A.'s Demurrer is **OVERRULED in its entirety.**

7. 9:00 AM CASE NUMBER: C25-01856
CASE NAME: CHANNEL PARTNERS CAPITAL LLC VS. DEBORAH REYNOLDS
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT TO ATTACH ORDER AND ORDER FOR
ISSUANCE OF WRIT OF ATTACHMENT RE: PASSAGE NAUTICAL ENTERPRISES, INC.
FILED BY: CHANNEL PARTNERS CAPITAL LLC
TENTATIVE RULING:

Both applications for Right to Attach Order and Order for Writ of Attachment have been withdrawn by the moving party. See Notice filed June 5, 2026.

8. 9:00 AM CASE NUMBER: C25-01856
CASE NAME: CHANNEL PARTNERS CAPITAL LLC VS. DEBORAH REYNOLDS
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT TO ATTACH ORDER AND ORDER FOR
ISSUANCE OF WRIT OF ATTACHMENT RE: DEBORAH SUE REYNOLDS
FILED BY: CHANNEL PARTNERS CAPITAL LLC
TENTATIVE RULING:

See LINE 7 above.

9. 9:00 AM CASE NUMBER: C25-02482
CASE NAME: ALISE MALIKYAR VS. MICHELE BARBARA
HEARING IN RE: JOINDER TO DEMURRER
FILED BY: JIMENEZ, DANIEL
TENTATIVE RULING:

The pending Motion to Disqualify Counsel was recently continued from June 8, 2026 to July 27, 2026. Accordingly, this Demurrer and the related Joinders are continued by the Court, *sua sponte*, for hearing on **August 17, 2026, 9:00 am**, in **Department 34**. Any opposition shall be filed and served no later than **August 4, 2026**. Moving parties to give notice of the continued date.

10. 9:00 AM CASE NUMBER: C25-02482
CASE NAME: ALISE MALIKYAR VS. MICHELE BARBARA
HEARING IN RE: JOINDER TO DEMURRER
FILED BY: ESPARZA, LYNEETTE
TENTATIVE RULING:

See Line 9 above.

11. 9:00 AM CASE NUMBER: C25-02482
CASE NAME: ALISE MALIKYAR VS. MICHELE BARBARA

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: BARBERA, MICHELLE

TENTATIVE RULING:

See Line 9 above.

12. 9:00 AM CASE NUMBER: C25-02955

CASE NAME: GEROME HENDRICKS VS. KATRINA ACOSTA

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CHRISTOPHER M. EGAN**

FILED BY: ACOSTA, KATRINA

TENTATIVE RULING:

Christopher M. Egan, Sijia S. Pu and PORTER SCOTT (“Counsel”) filed a Motion to be Relieved as Counsel on March 16, 2026 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on June 15, 2026.

Background

Counsel seeks to be relieved as attorneys for defendant Katrina Acosta dba Divine Home (“Defendant”). The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship because of an inability to establish contact with Defendant and because the insurance company is no longer providing any coverage for this lawsuit. See Declaration filed March 16, 2026, ¶12. Defendant has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. Counsel to resubmit an updated order after hearing (MC-053) which is complete, including specifying the client’s last known address and telephone number at Paragraph 6.

13. 9:00 AM CASE NUMBER: C26-00316

CASE NAME: G.D. VS. WALNUT CREEK LUXURY CARS, LLC

HEARING IN RE: APP TO FILE DOCUMENTS UNDER SEAL

FILED BY:

TENTATIVE RULING:

Plaintiff “G.D., as Trustee of a Private Family Trust” (“Plaintiff”) filed an Application to File Documents under Seal on January 29, 2026 (the “Motion to Seal”). The Motion to Seal was set for hearing on June 15, 2026.

Background

The Motion to Seal was filed at the outset of this case, along with the operative Complaint filed January 29, 2026.

The motion seeks to seal documents described as (1) “Confidential Declaration of True Trust Name and Authority” and (2) “Confidential Declaration of Vehicle Details” and (3) a “Confidential Contact Information Declaration” (the “Documents to be Sealed”). The Court has received and review these materials conditionally lodged under seal.

An Opposition brief was filed on June 4, 2026 by defendants Walnut Creek Luxury Cars, LLC (the “Dealer”) and Hudson Insurance Company (“Hudson”). Although there is an issue regarding a default sought to be entered against the Dealer and its ability, at this stage, to actively participate in the litigation, the Court has considered the Opposition, as it is also proffered by defendant Hudson which has appeared in the action. The Court exercises its discretion to consider the Opposition brief.

Analysis

Under the California Rules of Court, “[u]nless confidentiality is required by law, court records are presumed to be open.” Rule 2.550(c) of the California Rules of Court (“CRC”). Public access to civil proceedings serves to (i) demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings; (ii) provide a means by which citizens scrutinize and check the use and possible abuse of judicial power; and (iii) enhance the truthfinding function of the proceeding. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1219.

CRC Rule 2.551(a) provides:

A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.

See CRC Rule 2.551(a).

A court may order that a record be filed under seal only if it expressly finds facts that establish:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

See CRC Rule 2.550(d)(1)-(5).

The law favors maximum public access to judicial proceedings and court records. *Alfaro v. Superior Court* (2020) 58 Cal.App.5th 371, 386, quoting *Pantos v. City and County of San Francisco* (1984) 151 Cal.App.3d 258, 262-63. “Judicial records are historically and presumptively open to the public and there is an important right of access which should not be closed except for **compelling** countervailing reasons.” *Id.* (emphasis added).

The application lacks merit for several reasons.

First, the application is procedurally defective. There is no supporting declaration proffered other than

the Documents to be Sealed themselves. Moreover, Plaintiff failed to serve the application. The Proofs of Service of Summons filed by Plaintiff on March 23, 2026 and April 1, 2026 do not list this application as among the documents served.

Second, Plaintiff conflates seeking to litigate anonymously with seeking to seal court records. Generally, even when documents are sealed, they typically remain accessible to the parties engaged in the litigation. They are just not publicly available for inspection. Rather, what Plaintiff appears to desire is the ability proceed with this lawsuit using a pseudonym and to keep certain information about a supposed related trust and other information secret.

Third, even if the Court could, in the context of the present application, entertain making orders allowing Plaintiff to proceed by pseudonym and keep such information secret, it would not do so. Plaintiff has not shown any sufficient basis for such relief.

Under Code of Civil Procedure section 422.40, in a civil complaint, the title of the action shall include the names of all the parties, except as provided by statute or rule of the Judicial Council. Courts only allow parties to proceed under a pseudonym in special circumstances, where the parties' need for anonymity outweighs prejudice to the opposing party and the public, mainly because of the serious constitutional implications involved. *Doe v. Lincoln Unified School Dist.* (2010) 188 Cal.App.4th 758, 766-767; *Department of Fair Employment & Housing v. Superior Court* (2022) 82 Cal.App.5th 105, 110.

Because of the inherently sensitive nature of certain proceedings, there are some California statutes which specifically allow for keeping certain parties' identities confidential. This includes, for example, Civ. Code § 1708.87(f)(1) (plaintiff in action for nonconsensual distribution of sexually explicit materials may proceed under pseudonym), Code Civ. Proc. § 372.5 (allowing pseudonyms for guardian ad litem litigating on behalf of a minor), Civ. Code § 3427.3 (allowing pseudonyms in actions for interference with access to health care), Civ. Code § 1708.89 (allowing pseudonyms for doxxing) and California Rules of Court ("CRC"), Rule 8.401(a) (providing for anonymity in juvenile appeals).

In the absence of a statute permitting use of a pseudonym, the Court may still grant such anonymity to preserve an important privacy right. *Doe v. Lincoln Unified School Dist.*, *supra*, 188 Cal.App.4th at 766. In determining whether to allow a party to proceed in a case under a pseudonym where no statute is involved, the Court must apply the overriding interest test. *Department of Fair Employment & Housing*, *supra*, 82 Cal.App.5th at 111. A party seeking anonymity has the burden to show that there exists an overriding interest. *Id.* at 112.

Under the overriding interest test, a Court will find an overriding interest exists where (1) there exists an overriding interest that supports anonymity; (2) there is a substantial probability that the interest will be prejudiced absent anonymity; (3) the proposed anonymity is narrowly tailored to serve the overriding interest; and (4) no less restrictive means exist to protect the interest. *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court*, *supra*, 20 Cal.4th at 1218-1221. Outside of an explicit statute, proceeding by pseudonym occurs only in the rarest of circumstances. *Id.* at 1226. If pseudonym use is denied, the pleading must be amended to state the party's true name. *Id.* at 111, fn. 1.

Nothing in the record before the Court establishes that there is an overriding interest justifying permitting Plaintiff to proceed anonymously. Plaintiff's claims, a dispute over the alleged conversion of a luxury automobile and other related allegations, most certainly do not invoke matters of a highly sensitive and personal nature. Rather, this is an ordinary commercial dispute. Plaintiff has not demonstrated that there exists an overriding interest that supports anonymity, much less that there is a substantial probability that the interest will be prejudiced absent anonymity. Moreover, Plaintiff does

not seek to narrowly tailor the request, but rather seeks a sweeping order keeping his true name, trust information and other information about the subject vehicle secret.

Disposition

The Court finds and orders as follows:

1. The Motion to Seal is DENIED.
2. Plaintiff is ordered to file an amended complaint (the “Amended Complaint”) to state the party’s true name and to allege in the new pleading whatever information contained in the Documents to be Sealed Plaintiff wishes to allege in support of the stated claims.
3. Defendants shall have **thirty (30) days** after filing and service of the Amended Complaint to file a responsive pleading.
4. In light the foregoing, Plaintiff’s “Motion to Correct Clerical Misnomer in Request for Entry of Default” on May 18, 2026 (the “Motion to Correct”) is MOOT and the new hearing date recently set on that motion July 6, 2026 is VACATED. The related OSC is also DISCHARGED. The Motion to Stay and Quash Deposition Notices filed on May 28, 2026 remains set for hearing on July 6, 2026.

14. 9:00 AM CASE NUMBER: C26-00316
CASE NAME: G.D. VS. WALNUT CREEK LUXURY CARS, LLC
HEARING IN RE: APPLICATION FOR WRIT OF POSESSION
FILED BY:
TENTATIVE RULING:

Continued to **October 12, 2026**, 9:00 am, Department 34, by the Court’s Order issued June 11, 2026.

15. 9:00 AM CASE NUMBER: MSC20-00056
CASE NAME: GULINGAN VS SU
***HEARING ON MOTION IN RE: CONTINUED FROM 4/13/26**
FILED BY:
TENTATIVE RULING:

Defendants and Cross-Complainants Ying Zhong Su, Ziwen Yao and Rachel Xinqi Su (“Defendants”) filed a Motion to Tax Costs on November 25, 2025 (the “Motion to Tax Costs”) directed to the Memorandum of Costs filed by cross-defendant Salvacion Gulingan (“Gulingan”) on November 14, 2025. The Motion to Tax Costs was initially set for hearing on April 6, 2026. The Motion to Tax Costs was continued by the Court for hearing on April 13, 2026. At the hearing on April 13, 2026, the Court made certain orders regarding further meet and confer and the preparation of Joint Separate Statement as to any unresolved cost items in dispute. See Order entered May 6, 2026.

Background

A judgment was entered in this action on November 13, 2025 (the “Judgment”). The Judgment included a money judgment in favor of plaintiff and cross-defendant Gulingan as against all of the Defendants.

The Judgment determined that costs were to be awarded to plaintiff against Defendants upon post-trial request.

A Memorandum of Costs and supporting materials was filed referencing “Cross-Defendant Salvacion Gulingan” on November 14, 2025 (the “**Memo of Costs One**”). This Memo of Costs seeks a total of \$28,120.84 for various categories of specific costs. **It is Memo of Costs One that is at issue on this motion.**

A second Memorandum of Costs and supporting materials was filed referencing “SALVACION GULINGAN” on November 14, 2025 (the “**Memo of Costs Two**”). This Memo of Costs seeks a total of \$13,620.07 for various categories of specific costs. The Memo of Costs Two is not at issue in this motion.

The Motion to Tax Costs is supported by the Declaration of Lubna Jahangiri filed November 25, 2025 with the Motion to Tax Costs (the “Supporting Declaration”), followed by a supplemental Declaration filed December 1, 2025 (the “Supp. Supporting Declaration”).

Plaintiff filed an Opposition on December 4, 2025, along with the Declaration of Alberto Reyna (“Reyna Decl. re Costs”).

Defendants filed a Rely on April 6, 2026.

Pursuant to the Court’s Order, the parties filed their Joint Statement re Costs on May 22, 2026.

Analysis

When awarding costs, a court must apply the following principles: (1) costs are allowable if incurred, whether or not paid; (2) allowable costs must be reasonably necessary to the conduct of the litigation, not merely convenient or beneficial to its preparation, and (3) allowable costs must be reasonable in amount. See CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 16.17; see Code Civ. Proc. § 1033.5. If the items on a verified memorandum of costs appear to be proper charges, the memorandum is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338; see CJER Civ. Pro.—Trial, § 16.18.

Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.

Cost Items 1a (\$130.50, \$101.70 and \$41.70). The Court DENIES the request to tax or strike these cost items. The Court rejects the argument that a party is not entitled to recover filing fees for an unsuccessful motion. While the Court concurs that it has the discretion to conclude that the costs of an unsuccessful motion should be denied, even an ultimately unsuccessful motion may be a reasonable litigation expense if brought as part of a reasonable effort by the prevailing party to pursue its interests in the case. See *Naser v. Lakeridge Athletic Club* (2014) 227 Cal. App. 4th 571, 576 (affirming allowance of award of jury fee as costs even though no jury trial took place). The Court finds that the items in question were incurred as part of reasonable efforts by the prevailing party to pursue its interests in the case and that these costs items were reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Items 1b (\$207.50, \$94.95, \$137.50, \$433.51 and 209.50). The Court DENIES the request to tax or strike these cost items. The Court DENIES the request to tax or strike these cost items for the same

reasons discussed above in connection with Cost Items 1a. The Court finds that the items in question were incurred as part of reasonable efforts by the prevailing party to pursue its interests in the case and that these costs items were reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 1c (\$95.70). The Court DENIES the request to tax or strike this cost item. The Court concludes that the modest sum incurred to facilitate the appearance of an expert witness at trial was eminently reasonable. The Court finds that the item in question was reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 2a (\$857.50). The Court DENIES the request to tax or strike this cost item. A court may award costs for depositions including video-taping fees relating to video-taping those depositions that were necessary for trial preparation. Defendant has not shown that the video-taping the subject deposition was unnecessary or unreasonable. The Court finds that the item in question was reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 3a (\$186.00). The Court DENIES the request to tax or strike this cost item for the same reasons discussed above at to Cost Items 1b. The Court finds that the item in question was reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 3b (\$387.22). The Court DENIES the request to tax or strike this cost item. If part of a reasonable effort by the prevailing party to pursue its interests in the case and prepare for trial, the cost to secure the attendance of a witness at trial is a reasonably necessary expense even if ultimately not necessary because another party calls the witness. See *Naser v. Lakeridge Athletic Club* (2014) 227 Cal. App. 4th 571, 576 (affirming allowance of award of jury fee as costs even though no jury trial took place). The Court finds that the item in question was reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 3c (\$656.79). The Court DENIES the request to tax or strike this cost item for the same reasons discussed above at to Cost Items 3b. The Court finds that the item in question was reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 3d (\$857.45). The Court DENIES the request to tax or strike this cost item for the same reasons discussed above at to Cost Items 3b. The Court finds that the item in question was reasonably necessary to the conduct of the litigation and reasonable in amount.

Cost Item 4a (\$9,568.75). The Court DENIES the request to tax or strike this cost item. The moving parties contend that that expert fees are not properly recoverable under Code of Civil Procedure section 998. See Code Civ. Proc. § 998(c) ("In addition, in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the plaintiff to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the defendant."). Gulingan contends that Mr. Westover's testimony was reasonably necessary, including to "to establish the location of the boundary line in relation to the location of the failed rock wall to establish that the Cross-Complainants' wall was encroaching on Cross-Defendant's property." See Opposition, p. 8. The Court is unpersuaded by the distinction the moving parties attempt to draw based on the cross-complaint having been dismissed mid-trial and the expert's testimony being used by Gulingan "as plaintiff." It is evident that the expert work and testimony was still necessary and material to the issues in contention. See Reyna Decl. re Costs, ¶14. The Court finds that the item in question was reasonably necessary to the conduct of the

litigation and reasonable in amount.

Disposition

The Court finds and orders as follows:

1. The Motion to Tax Costs is DENIED.
2. The Court shall issue the order after hearing.

16. 9:00 AM CASE NUMBER: MSC20-01624

CASE NAME: RAFAY VS FCA US, LLC

***HEARING ON MOTION IN RE:**

FILED BY:

TENTATIVE RULING:

This matter is further continued by the Court, *sua sponte*, to **June 29, 2026, 9:00 am, in Department 34.**

17. 9:00 AM CASE NUMBER: N25-1537

CASE NAME: RAMANUJAN LLC VS. KAWALDEEP SETHI

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: BRIAN J. WAGNER, ESQ.**

FILED BY: RAMANUJAN LLC

TENTATIVE RULING:

Brian J. Wagner and Kutak Rock LLP (“Counsel”) filed a Motion to be Relieved as Counsel on January 30, 2026 (the “Motion to be Relieved as Counsel”). The matter was set for hearing on June 15, 2026.

Background

Counsel seeks to be relieved as attorneys for plaintiff Ramanujan LLC (“Plaintiff”).

The supporting declaration filed by Counsel indicates that there has been a breakdown in the attorney-client relationship. See Declaration filed January 30, 2026, ¶12. Plaintiff has been given notice of the Motion to be Relieved as Counsel. *Id.* at ¶13 and Notice filed January 30, 2026.

Analysis

The Motion to be Relieved as Counsel is unopposed.

Disposition

The Court finds and rules as follows:

1. The Motion to be Relieved as Counsel is GRANTED.
2. The Court shall issue the order after hearing.

18. 9:00 AM CASE NUMBER: N26-0379

CASE NAME: CLAIM OF:MARLOWE SMITH

***HEARING ON MINOR'S COMPROMISE**

FILED BY: SMITH, STEVEN

TENTATIVE RULING:

Parties to Appear. Counsel to present form(s) of order at the hearing.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C23-02013

CASE NAME: DENNIS SANFORD VS. CHANNEL LUMBER CO.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION TESTIMONY BY GRS FUNDING, INC.**

FILED BY: CHANNEL LUMBER CO.

TENTATIVE RULING:

Parties to Appear.

20. 9:01 AM CASE NUMBER: C24-00356

CASE NAME: SUSAN SHINTAKU VS. CITY OF ANTIOCH

***HEARING ON MOTION FOR DISCOVERY TO COMPEL DEF CITY OF ANTIOCH'S FURTHER RESPONSES TO FORM INTERROGATORIES SET THREE**

FILED BY: SHINTAKU, SUSAN

TENTATIVE RULING:

Pursuant to the Court's Tentative Ruling on a related discovery motion set for hearing on June 8, 2026 and the Court's Order issued June 9, 2026, this motion has been CONTINUED by the Court to **August 31, 2026, 9:00 am**, in **Department 34**. The parties are admonished to review the Court's June 9th Order for additional requirements.

21. 9:01 AM CASE NUMBER: C25-00076

CASE NAME: KERI KLOSINSKI VS. KK CARGO, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEFENDANTS' BUSINESS RECORDS SUBPOENAS TO PLAINTIFF NIKI KLOSINSKI'S MEDICAL PROVIDERS**

FILED BY: KK CARGO, INC.

TENTATIVE RULING:

Defendant KK Cargo, Inc. ("Defendant") filed two motions to compel various medical providers' compliance with deposition subpoenas for production of business records on December 23, 2025 (the "Motions to Compel"). By the Motions to Compel, Defendant seeks production of medical records

relating to treatment records of plaintiffs Keri Klosinski and Niki Klosinski (“Plaintiffs”) pursuant to subpoena. The Motions to Compel were set for hearing on June 15, 2026.

Background

Defendant issued third party records subpoenas (the “Subpoenas”) to third parties seeking Plaintiffs’ medical records on September 3, 2025. This included ten subpoenas for the medical records of plaintiff Keri Klosinski and twenty subpoenas for the medical records of plaintiff Niki Klosinski. The scope of records for all Subpoenas was 01/01/2015 to present. See Separate Statement filed December 23, 2025 (“Separate Statement as to Keri Klosinski”), p. 1-8; Separate Statement filed December 23, 2025 (“Separate Statement as to Niki Klosinski”), p. 2-13. Defendant’s requests included, but were not limited to, the following records:

All documents and records stored in any format or method including, but not limited to, all medical records, intake forms, patient completed forms and/or documents, correspondence, all office records, emergency room records or reports, inpatient and outpatient charts and records, lien files, SOAP notes, pathology records and reports, lab reports, pharmacy and prescription records, physical therapy records, sign-in sheets, all description of exercises prescribed, documentation which indicate date and time of patient’s appointments, insurance documents, all radiology reports and readings, and any other documents maintained pertaining to the care, treatment and examination of the patient.

All itemized statements of the billing charges and/or consolidated statement of benefits, with diagnostic and procedure codes including all CPT and ICD-9/ICD-10 coding and all HCFA, UB04 and UB92 bills, to include the total charges private or governmental; any amounts written off by the provider, and any amounts that are the patient’s responsibility and explanation of benefits, payment history, records of any liens, any insurance billing or payments information, emergency room physicians bills and radiology billing from all sources, to include any computer generated billing or billing stored in any format and payment software that contains said information; and

COPIES of all original x-rays films, CT scans, MRIs and any other scans or images taken and/or maintained, including a comprehensive list of all dates and body parts of all films, CT scans, MRIs and all other images or scans provided. All images and films must be provided on CD if available.

Id.

Plaintiffs served written objections to the Subpoenas on September 25, 2025. See Plaintiffs’ Combined Opposition filed June 6, 2026 (“Plaintiffs’ Opposition”), ¶13.

Plaintiffs describe meet and confer efforts made between September 2025 and December 2025, with Plaintiffs requesting limitations on the requested records. The parties were unable to agree on setting limitations. See Plaintiffs’ Opposition, ¶¶14-15.

Plaintiffs allege that between October 2025 and November 2025 records were produced by the Subpoenas from at least three providers. See Plaintiffs’ Opposition, ¶14.

Defendant subsequently filed the Motions to Compel on December 23, 2025.

The Proof of Service attached to each Separate Statement filed December 23, 2025 reflect service of the

Motions to Compel on the respective medical providers, as well as Plaintiffs' counsel.

Plaintiffs filed an opposition on June 6, 2026.

Analysis

When a deponent fails to answer any question or to produce any document under the deponent's control that is specified in the deposition subpoena, the party seeking discovery may move the court for an order compelling that production. Code Civ. Proc. § 2025.480.

The California Constitution guarantees a right to privacy. Cal. Const., art. I, § 1. Where the right to privacy is implicated, courts weigh the loss of privacy against the "legitimate and important countervailing interests disclosure serves." *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552. "The materials sought must be directly relevant to the issue of pain and suffering associated with the physical injuries petitioner sustained." *Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1017.

Here, the claims arise out of a motor vehicle accident alleged to have occurred on or around June 10, 2024. See Complaint filed January 9, 2025 ("Complaint"), ¶15. Plaintiffs are alleged to have suffered "severe and permanent injury to the body and nervous system." *Id.* at ¶29. This includes but is not limited to neck, back, and shoulder pain as well as traumatic brain injuries for both Plaintiffs. See Plaintiffs' Opposition, ¶9.

The subpoenaed records are substantially similar for both plaintiffs. On one hand, they include records from providers who treated Plaintiffs in relation to the accident. On the other, they include medical providers who treated Plaintiffs unrelated to the accident.

The Court is inclined to grant the Motions to Compel in part, as to the treating providers from the accident. These records are clearly discoverable as the treatment of injuries alleged is directly relevant to the case. Plaintiffs have impliedly waived their right to privacy for treatment of injuries alleged in the cause of action. *Britt v. Superior Court* (1978) 20 Cal.3d 844, 863. Furthermore, Plaintiffs effectively concede the discoverability of these records. See Plaintiffs Opposition, ¶¶20-21. Although the scope for these records is broad, dating back to January 1, 2015, Plaintiffs report that these providers did not treat Plaintiffs prior to the accident. As such, this broad scope has no material impact on discoverability. For these reasons, the Court grants the motion to compel in part, as to records from treating providers related to the accident.

The Court is not inclined to grant the Motions to Compel as to medical records from non-treating providers, because the information put before the Court failed to establish good cause for production of records **to the extent specified** in the subject subpoenas. The Court notes that the Subpoenas sought the broadest possible scope of medical records relating to Plaintiffs going back to January 1, 2015, a date more than nine years before the alleged accident. Among other things, no distinction is made in the request between records relating to treatment for areas of the body reasonably implicated by the subject accident/injuries versus other matters such as mental health treatment. Defendant contends that plaintiff Keri Klosinski's pre-existing diagnosis of Systemic Lupus Erythematosus ("SLE") and plaintiff

Niki Klosinski's pre-existing diagnosis of Ehlers-Danlos Syndrome ("EDS") open the door to broader discovery into plaintiffs' medical history. See Separate Statement as to Keri Klosinski, p. 11; Separate Statement as to Niki Klosinski, p. 13. Defendant, however, does not offer any persuasive evidence of a sufficient nexus between those conditions and the injuries alleged by Plaintiff as a result of the subject accident. More importantly, even if such conditions might expand the scope of discovery of medical records, the Court certainly does not conclude that they justify the scope of the Subpoenas as presently framed as to non-treating medical providers. As such, any relation between the Plaintiffs' respective conditions and the injuries alleged is merely speculative and does not justify the scope of discovery sought.

While some more narrowly tailored scope of medical records production may well be discoverable, the Court is not inclined to compel a response to these Subpoenas as presently framed, as to non-treating medical providers.

Nonetheless, the parties are encouraged to meet and confer regarding a more narrow stipulation scope of production and other measures to protect privacy concerns such as a protective order for the distribution and use of any medical records.

As relates to sanctions however, in light of the foregoing, the Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) ("The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

Disposition

The Court find and orders as follows:

1. The Motions to Compel are GRANTED IN PART, as to medical records from treating providers related to the accident.
2. The Motions to Compel are DENIED IN PART, as to medical records from providers unrelated to the accident.
3. The originals of any documents received pursuant to the Subpoenas from any provider outside of the scope of discovery permitted by this ruling including but not limited to records from John Muir, Lucile Packard, and Total Spine are hereby ordered to be surrendered to the Plaintiffs and any copies destroyed within fifteen (15) days of notice of entry of this order. Alternatively, if the parties agree, the parties may agree on a scope of records to be retained as an appropriate scope of production with Defendant confirming destruction of all other records from the provider.
4. Any and all sanctions requests are DENIED.

22. 9:01 AM CASE NUMBER: C25-00076

CASE NAME: KERI KLOSINSKI VS. KK CARGO, INC.

*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEFENDANTS' BUSINESS
RECORDS SUBPOENAS TO PLAINTIFF KERI KLOSINSKI'S MEDICAL PROVIDERS

FILED BY: KK CARGO, INC.

TENTATIVE RULING:

See LINE 21 above.